

FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION
 FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY

To be completed by the City, Town or County Clerk:

Date Filed: Jan 15, 2016 MR# 129133

Basic Fee:	Annual Fee	Prorated Fee
	\$ <u>10,500.00</u>	\$ _____
Add'l Dispensing Room Fee:	\$ <u>1000.00</u>	\$ _____
Transfer Fee:	\$ _____	\$ _____
Total License Fee Collected	\$ <u>11,500.00</u>	\$ _____
Publishing Fee Collect:	\$ <u>100.00</u>	\$ _____

Required Attachments Received: Yes ☒ No ☐

Advertising Dates(2 wks): Feb 18, 25, 2016

Hearing Date: March 14, 2016

Local Licensing Number: 5

For the license term: April 1, 2016 to March 31, 2017
Month Day Year

Through: March 31, 2017
Month Day Year

A copy must be immediately forwarded to:
 State of Wyoming Liquor Division
 6601 Campstool Rd.
 Cheyenne WY 82002-0110

Formerly Held by: _____

Applicant: S&S Wyoming, LLC

Trade Name (dba): The Suite Bistro

Premise Address: 1901 Central Avenue
Number & Street

Cheyenne WY 82001 Laramie
City State Zip County

Mailing Address: 1323 Aspen Dr
Number & Street or P.O. Box

Cheyenne WY 82009
City State Zip

Business Telephone Number: (307) 299 2261

Fax Number: ()

E-Mail Address: cschroeder257@gmail.com

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

FILING FOR ☒ NEW ☐ TRANSFER LOCATION ☐ TRANSFER OWNERSHIP FILING IN (CHOOSE ONLY ONE) ☒ CITY OF <u>Cheyenne</u> ☐ COUNTY OF _____ FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☐ PARTNERSHIP ☐ CORPORATION ☐ LTD PARTNERSHIP ☐ ASSOCIATION ☐ ORGANIZATION ☒ LLC ☐ LLP	TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE) ☐ RETAIL LIQUOR LICENSE ☐ on-premise only (Bar) ☐ off-premise only (Package Store) ☐ combination on/off premise (Both) ☐ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB ☐ MICROBREWERY ☒ WINERY ☒ BAR AND GRILL ☐ LOCATED WITHIN 5 MILES OF CITY (County License only)	To Assist the Liquor Division with scheduling inspections: DO YOU OPERATE? ☒ FULL TIME (e.g. Jan through Dec) ☐ SEASONAL/PART-TIME (specify months of operation) from <u>Jan</u> to <u>Dec</u> DAYS OF WEEK (e.g. Mon through Sat) <u>Tues to Sat</u> HOURS OF OPERATION (e.g. 10a - 2a) <u>2pm - 2am</u>
---	---	--

1. Location of License:

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10 x 12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: W.S. 12-4-102(a)(i): (Please submit a drawing of the establishment that includes the dispensing room)

17' x 12' room on south side of building

(b) If Winery or Microbrewery, also list manufacturing facility.(e.g. MFG: 10' X 12' room in SW portion of bldg.)

NA

(c) Do you have an additional dispensing room? ☒ YES ☐ NO If yes, provide description and location:
20' x 30' room in basement level, southwest corner

(d) Provide the legal description and the zoning of the site where the applicant will conduct business:
all of lots 5, 6, 7, Block 295 (CBD)

2. Do you W.S. 12-4-103 (a) (iii):

- (1) OWN the building in which sales room is located?
 (2) LEASE the building in which sales room is located?

☐ YES (own)
☒ YES (lease)

(A) DATE lease expires 11/22 located on page 1 paragraph 4 of lease document.

(B) Provision for SALE of alcoholic or malt beverages located on page 1 paragraph 3 of lease.

NOTE: Attach a true copy of the lease to application. Lease MUST contain provision for SALE OF ALCOHOLIC or MALT BEVERAGES and be valid THROUGH the TERM OF THE LICENSE W.S. 12-4-103(a)(iii).

form only

Date: 2/5/16

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO
4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
 (a) Hold any interest in the license applied for? ☐ YES ☒ NO
 (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
 (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
 (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith:
-
5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO
 If "YES", explain: _____
6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO
7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):

8. (a) Have you submitted a valid food service permit upon application?
 W.S. 12-4-407(a) W.S. 12-4-413(a) ☒ YES ☐ NO
 (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☒ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c):

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
 (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
 (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:

10. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license?
 W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
 If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail
☐ Restaurant ☐ Resort ☐ Bar & Grill:
11. (a) Do you self distribute your products? ☐ YES ☐ NO
 (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☐ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:

12. **FRATERNAL CLUBS** W.S. 12-1-101(a)(iii)(B)
 (a) The name and address of the grand lodge or national organization is: _____
 (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
 (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
 (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO
-
13. **VETERANS CLUBS** W.S. 12-1-101(a)(iii)(A):
 (a) The name and address of the National Veterans organization is: _____
 (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
 (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an Individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership.

If the application is for a Club: State the name, date of birth and residence of each officer.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
						YES ☐ NO ☐	YES ☐ NO ☐
Cory Schroeder	Aug 24 1990	1223 Aspen Dr Cheyenne 82009	307 299 2261	3	51	YES ☐ NO ☒	YES ☐ NO ☒
Thud Stoddard	Mar 18 1990	702 N 9th St Laramie 82072	307 359 0124	3	49	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)

SS.

COUNTY OF Laramie

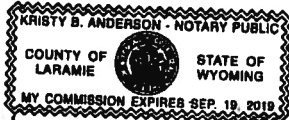
Before Me, Kristy Anderson, (specify)
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for
Laramie County, State of Wyoming, personally appeared

Cory Schroeder & Thad Stoddard name he/she being first duly sworn
(Insert Names)

by me upon his oath, says that the facts alleged in the foregoing instrument are true.

(Seal)



1. Cory Schroeder
2. Thad Stoddard
3. _____
4. _____

My Commission expires: 9-19-2019

Witness my hand and official seal:

Kristy B. Anderson
(Notary Public or other officer authorized to administer oaths)

Title Notary

Dated: Jan 5, 2016

REQUIRED ATTACHMENTS:

- (a) Attach any lease agreements W.S. 12-4-103 (a) (iii).
- (b) If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- (c) A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (vi).
- (d) Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- (e) Include a drawing of the dispensing room W.S. 12-5-201 (a).
- (f) Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- (g) If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for two (2) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Acct.:		



The Suite, LLC
Shad Griffith
1901 Central Ave
Cheyenne, WY 82001
1/5/2016

Rick Kaysen
Mayor of Cheyenne
City of Cheyenne
2101 O' Neil Ave
Cheyenne, WY 82001

Dear Rick Kaysen:

The Suite LLC is going to turn in the Bar & Grill liquor license as of March 31st, 2016. S & S Wyoming, LLC, is applying for a new Bar & Grill liquor license to be effective April 1, 2016. S&S Wyoming, LLC will operate under The Suite LLC until March 31, 2016 with all proceeds from alcohol sales going to The Suite LLC.

Thank you for your time and interest in this matter.

Sincerely,

The Suite, LLC
Shad Griffith
President

S & S Wyoming, LLC
1323 Aspen Dr.
Cheyenne, Wyoming 82009

S&S Wyoming

FOR RICK KAYSEN, Mayor of Cheyenne, 2101 O'Neil Ave, Cheyenne, Wy 82001

Subject: Bar and Grill Liquor License for The Suite Bistro

- 1) Thank you for taking the time to review the application submitted by S & S Wyoming, LLC for a Bar and Grill license. We are confident that you will be very satisfied with the services that we will continue to offer at The Suite Bistro and Martini Bar.
- 2) We are a new owners purchasing an existing business and plan to keep the business as is offering nice dinners and elegant drinks in a family friendly environment. We are two Wyomingites excited to operate our first Cheyenne business and make it as successful as our past ventures. We would be glad to answer any questions you might have.
- 3) The undersigned can be reached by email at cschroeder257@gmail.com or by phone at 307-299-2261. Again thank you from S & S Wyoming, LLC.


Cory W. Schroeder
Owner


Thad M. Stoddard
Owner

STATE OF WYOMING
Office of the Secretary of State

I, ED MURRAY, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that according to the records of this office,

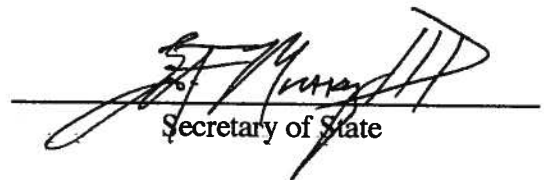
S & S Wyoming, LLC
is a
Limited Liability Company

formed or qualified under the laws of Wyoming did on **May 17, 2013**, comply with all applicable requirements of this office. Its period of duration is Perpetual. This entity has been assigned entity identification number **2013-000643674**.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed Articles of Dissolution.

I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 5th day of January, 2016 at 12:46 AM. This certificate is assigned 019191832.



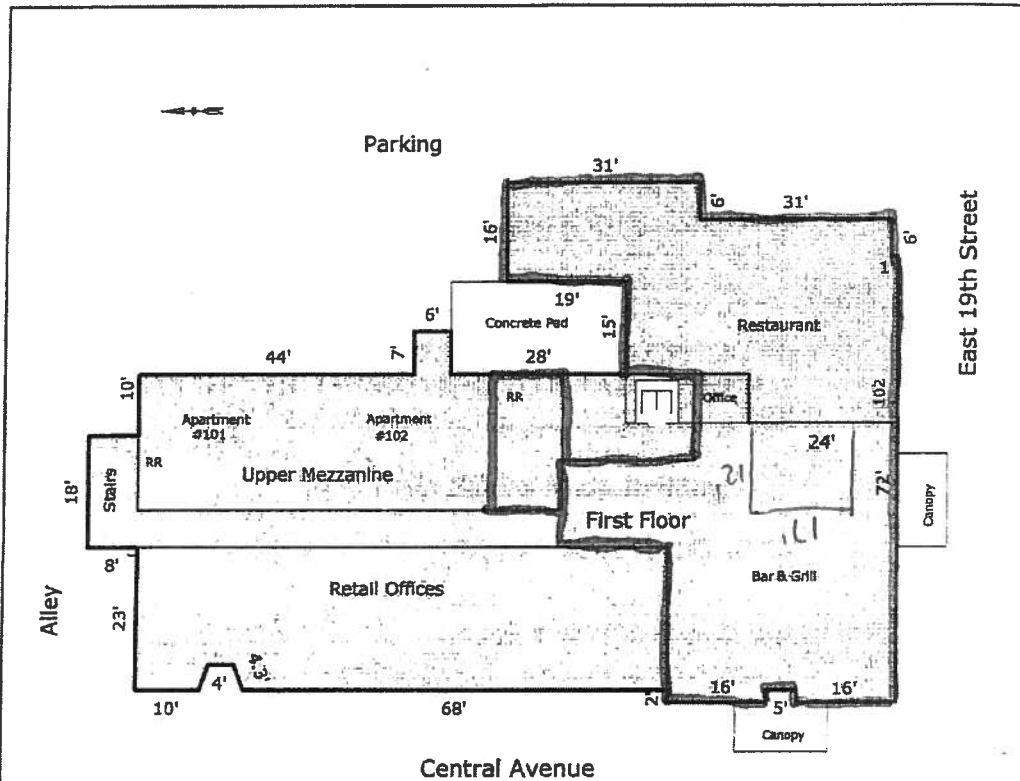

Secretary of State

Notice: A certificate issued electronically from the Wyoming Secretary of State's web site is immediately valid and effective. The validity of a certificate may be established by viewing the Certificate Confirmation screen of the Secretary of State's website <http://wyobiz.wy.gov> and following the instructions displayed under Validate Certificate.

Attachment "A" Lease area outlined

DESCRIPTION OF THE IMPROVEMENTS, CONTINUED

First Floor Sketch Main Building



Sketch by Auer-Roth & Associates
Comments:

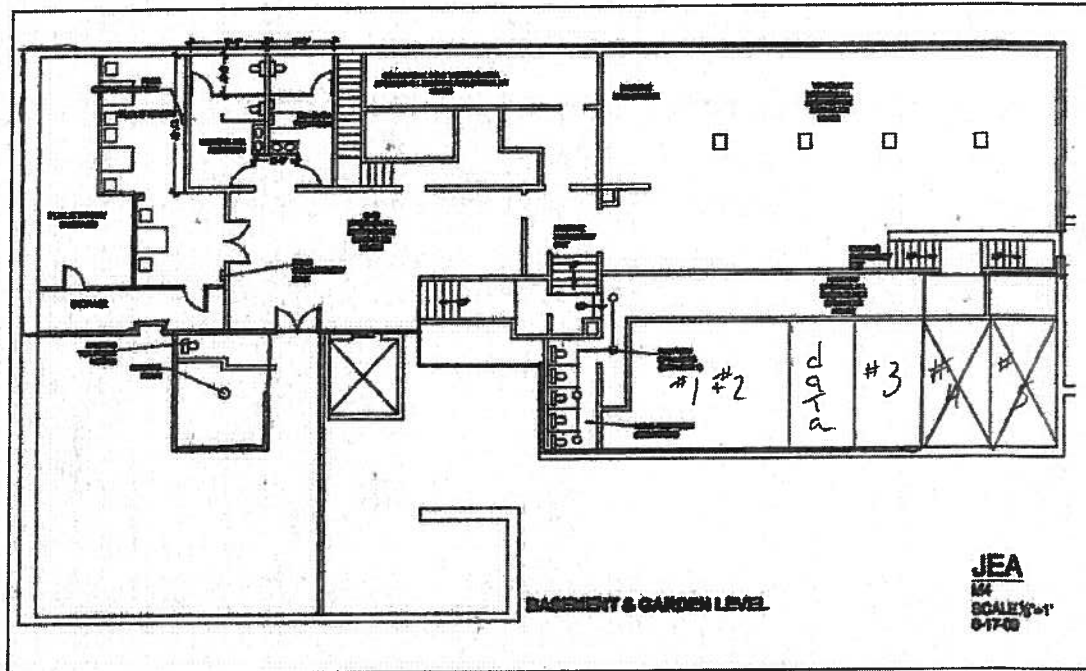
AREA CALCULATIONS SUMMARY			
Code	Description	Net Area	Net Total
GBAL	First Floor	7920.00	7920.00
OTH	Restaurant	1662.00	
	Upper Mezzanine	1538.00	
	Retail/Office Area	1933.00	5133.00
main Bar & Grill 1795 sf Restaurant 1662 sf Approximately 3447 sf Total plus women's Restroom upper mezzanine			
Net BUILDING Area		(rounded)	7920

BUILDING AREA BREAKDOWN		
Breakdown		Subtotal
First Floor		
15.0' x 2.0'		32.00
105.0' x 4.0'		420.00
2.0' x 16.0'		32.00
122.0' x 19.0'		2318.00
0.5' x 4.0'		2.00
0.5' x 3.5'		1.75
130.0' x 18.0'		2340.00
10.0' x 4.0'		40.00
10.0' x 122.0'		1220.00
7.0' x 6.0'		42.00
15.0' x 4.0'		60.00
63.0' x 4.0'		252.00
6.0' x 31.0'		186.00
6.0' x 62.0'		372.00
14 Items		(rounded) 7920

Attachment "B"
Lease area outline

DESCRIPTION OF THE IMPROVEMENTS, CONTINUED

Basement & Lower Mezzanine Plan



Sublease between The Suite, LLC and S & S Wyoming, LLC

1. This is a sublease between The Suite, LLC and S & S Wyoming, LLC to start on January 11, 2016 and expire on March 31, 2017.
2. S & S Wyoming, LLC will have the rights to sell alcohol in all subleased areas, the store fronts on the first floor and apartment 500 (Penthouse Apartment at 1901).
3. Rent will be paid to 365 Real Estate by the 5th of each month.
4. Adhere to all conditions of the current lease between The Suite LLC and 3/J Ranch Enterprises, LLC.
5. S & S Wyoming LLC agrees to be assigned to the lease between 3/J Ranch Enterprises LLC and The Suite LLC dated December 20, 2012.
6. Assignor, The Suite, LLC, assigns and transfers to Assignee, S & S Wyoming LLC, the lease dated December 20, 2012.

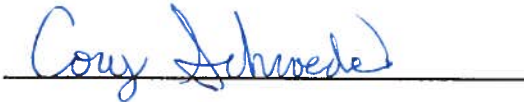


Shad Griffith

The Suite, LLC

7513 Jacob Place

Cheyenne, WY 82001



Cory Schroeder

S & S Wyoming, LLC

762 North 9th St

Laramie, WY 82072

COMMERCIAL LEASE AGREEMENT

1901 Central Avenue
Cheyenne, WY 82001

WHEREAS "LESSOR," 3/J Ranch Enterprises, LLC, agrees to lease the real property commonly known as "Suite 1901," located at 1901 Central Ave, Cheyenne, Wyoming, to "LESSEE," The Suite LLC, under the following terms.

1. LESSOR and LESSEE are limited liability companies organized under the laws of the State of Wyoming and each of LESSOR and LESSEE represents and warrants that it is in good standing under the laws of the State of Wyoming and has full power and authority to enter into this Commercial Lease Agreement (hereinafter the "Lease").
2. PREMISES. The LESSOR leases to LESSEE approximately 8,936 square feet of the Premises hereby referred to as "The Suite" improvements and the appurtenances located on the first floor of the Premises, including the restaurant, the bar & grill, the women's restroom located in the upper mezzanine, the basement, the mutual use of the elevator, and 2 parking lot spaces (of which will be located directly outside the east entrance to the commercial kitchen). Leased area not to include lower mezzanine unisex bathroom at North end of hallway, office space #4 and #5, boiler room, old chiller area, and riser room. (Refer to Attachment' A, B, and C, for additional square footage descriptions, and lease area outlines of "The Suite").
3. LESSOR acknowledges LESSEE will lease and/or operate "The Suite LLC," for sale of alcohol throughout leased, retail, and commercial premises, to include "The Penthouse at 1901 Central Ave unit 500 and/or for any other City of Cheyenne Licensed Business located within the premises.
4. TERM AND RENEWAL. The term of this Lease is 10 years beginning on December 20, 2012 and ending November 30, 2022. Should LESSEE fail to give a 90 day written notice to LESSOR of LESSEE'S intent to vacate on November 30, 2022, this Lease shall automatically renew for a period of 5 years beginning on December 1, 2022 and ending on November 30, 2027. LESSOR or LESSEE shall give the other party no less than 90 days written notice prior to November 30, 2022 if it does not wish to continue the Lease after the first term in which event the Lease shall terminate on November 30, 2022.
5. RENTAL AMOUNT. LESSEE agrees to pay LESSOR \$[REDACTED] per month, based on \$[REDACTED] per square foot of the +-8,936 sq ft. After one (1) year the LESSOR may increase the monthly rent an additional \$1.00 per square foot per month as follows:

- January 1, 2014 rent to be \$[REDACTED] per month based on \$[REDACTED] per sf.
- Beginning January 1, 2015, the LESSOR may increase the monthly rent price annually by a minimum of two percent (2%) or the increase in the published Consumer Price Index (CPI) -All Urban Consumers Area - Western Urban, whichever is greater but not to exceed four percent (4%). The parties agree that the Base Published Rate as of November 1, 2015 will be used to determine the annual increase. (Source: Bureau of Labor /Statistics). 30, 2013 JLM
- Both parties agree to consider price per square foot rent increase, beginning January 1, 2016, and/or the rent adjustment due to CPI increase.

Monthly rent payments are due by end of day (5:00 p.m. MST) on the 1st of each month. LESSOR and LESSEE agree that the rent as of December 20, 2012 will be considered paid and first payment of [REDACTED] will be due January 1, 2013. Beginning the 6th of each month, LESSEE will be charged \$500 per week for each week the monthly rental payment is late, not to exceed \$1,500 (One Thousand, Five Hundred Dollars) per monthly payment in late fees. If the current rent due plus any late fees charged is not paid by the 15th day of the month the rent is due, LESSOR may begin the due process to terminate the Lease.

6. SECURITY DEPOSIT. LESSEE will pay a non-refundable security deposit of [REDACTED] Dollars).
7. USE. LESSEE agrees and hereby releases, agrees to indemnify and hold harmless LESSOR and each of its employees and affiliates from any and all liability arising from LESSEE'S use of the Premises.

LESSEE will be solely responsible for keeping the Sidewalk Cafe clean and in presentable condition and for maintaining current city licensing. Because the Sidewalk Cafe is on City of Cheyenne property, LESSEE shall maintain the Sidewalk Café in strict compliance with City of Cheyenne ordinances.

LESSOR acknowledges that the bar and grill will have music, live bands and music, playing inside and on the sidewalk café. Noise levels will not exceed those authorized by the City of Cheyenne ordinances. Provided it is allowed by City of Cheyenne ordinances, live music may performed outside until 10:00 P.M. on Sunday through Thursday evenings and until midnight on Friday and Saturday evenings. LESSEE is authorized to exceed these time limits up till four times per year if allowed by the City of Cheyenne ordinances

8. LEASE PROVISION. LESSOR acknowledges and agrees that LESSEE may sell alcoholic or malt beverage on the Premises in accordance with W.S. 12-4-103(a) (iii). LESSEE'S license is not held by any person employed by the state or a city, town or county as a law enforcement officer or who holds office as a law enforcement officer through election.

LESSEE shall follow all City of Cheyenne ordinances including City of Cheyenne Ordinance Nos. 3705 and 3649 where applicable.

9. CONFIDENTIALITY AND SECURITY. LESSOR agrees and understands that tenants of the Premises shall have confidential business and/or client information on the Premises. LESSOR agrees that it will hold in strictest confidence any and all information it may obtain while on the Premises, whether obtained accidentally or purposefully. LESSEE shall ensure that any employee, sub-lessee, or other party under its control will be held to the same standards of confidentiality and shall be held liable for any and all damages incurred by breaching such confidentiality. In addition, LESSOR acknowledges the importance of confidentiality and security and agrees to take reasonable steps to ensure the confidentiality and security of LESSEE'S business information and affairs. Nothing herein, however, shall affect LESSOR'S right to enforce its remedies under this Lease in the event of a default by LESSEE.
10. WASTE AND HAZARDOUS ACTIVITIES. LESSEE shall not commit or suffer to be committed any waste on the Premises, nor shall LESSEE permit the Premises to be used in any way which would be hazardous on account of fire, toxic chemicals or anything else which would in any way increase or render void any insurance on the Premises.
11. SIGNS AND AWNINGS. LESSEE has the right to choose/regulate all signs and awnings associated with the leased space, on the building exterior, including the west and south marquees. All signs shall comply with the City of Cheyenne sign ordinances and shall be installed in a manner to avoid injury or defacement of the Premises. Upon the expiration or sooner termination of this Lease, all signs placed by the LESSEE shall be removed and all damage caused by the erection, maintenance or removal of any of the signs shall be fully repaired at the expense of the LESSEE. LESSEE shall remove all inside vinyl wrapping from the windows and repair all damage caused by the removal of the vinyl wrappings. All awnings shall remain on the Premises and shall not be removed by LESSEE. All signage lighting installed by LESSEE shall conform to the City of Cheyenne ordinances and applicable City of Cheyenne Codes.
12. LESSOR and LESSEE acknowledge that it is in the best interest of all parties to maintain an aesthetic appearance of the building in order for all businesses and residential areas operated on the Premises to be successful. LESSOR and LESSEE will adhere to regulations prohibiting political or offensive signage. LESSOR and LESSEE will also enforce all safety terms and regulations, terms, and conditions which prohibits excessive noise in or outside of building and excessive loitering on premises.

13. UTILITIES. LESSOR will furnish electricity, gas, water, sewage and other utilities as part of this Lease, with the exception of telephone, internet, or cable television service, which shall be the sole responsibility and expense of the LESSEE. LESSOR has the right to charge an 'Energy Surcharge' for excessive use of electricity, gas, water, sewage and other utilities based on average historical use of the Premises.

14. REPAIRS AND MAINTENANCE. LESSEE agrees as follows:

- LESSOR shall maintain in good repair, structural components of the roof, exterior walls, and foundations. LESSOR shall be responsible for maintenance and repair of all electrical, utility, and plumbing into the building from point of connection of city sources to the leased Premises. During the term hereof, LESSEE shall give LESSOR written notice of the necessity for such repairs and provided that the damage thereto shall not have been caused by the intentional acts or carelessness or negligence of LESSEE, its agents, employees, clients, sub-lessees, invitees, licensees, visitors or customers, in which event LESSEE shall be responsible for replacement and repair costs, including repair and maintenance of public utility lines.
- LESSEE will be responsible for keeping Premises in good, clean and habitable condition, including the maintenance, repair and replacement of the plate glass windows. Repairs and maintenance include but are not limited to improvements, alterations, and/or physical additions LESSEE performed prior to entering the Lease. LESSEE shall at his expense, maintain the leased space including plumbing, electrical, and mechanical equipment/fixtures at all times during this lease or any renewal thereof. Any repairs or alterations in excess of \$5,000 shall require the prior consent of LESSOR.
- LESSEE shall not allow any damage to be committed on any portion of the Premises, and on termination of the Lease, LESSEE shall deliver the Premises to LESSOR in good condition, ordinary wear and tear excepted. All upgrades to the Premises are to remain upon termination of the Lease. LESSEE shall be responsible for paying and clearing all liens against the Premises for work performed.
- Any necessary repairs noted by LESSOR in writing or electronic communication, LESSEE will have 15 days to complete, or provide documentation that repairs are scheduled for completion, to ensure integrity of the leased premises.
- All requests for repairs or maintenance that are the responsibility of LESSOR pursuant to any provision of this Lease must be made in writing by LESSEE to LESSOR or its designee at the address set forth below or as amended in writing from time to time. LESSOR acknowledges the time sensitivity of repairs which will be high priority.

RE/MAX Capitol Properties
4000 Central Avenue Suite 1
Cheyenne, WY 82001

15. COMPLIANCE WITH LAWS, RULES AND REGULATIONS. LESSEE, at its sole cost and expense, shall comply with all laws, ordinances, orders, rules and regulations of state, federal, municipal or other agencies or bodies having jurisdiction relating to the use, condition, re-facing and non re-structural remodeling, and occupancy of the Premises.

16. CONDEMNATION. If, during the Term, all or a substantial part of the Premises are taken for any public or quasi-public use under any governmental law, ordinance or regulation, or by right of eminent domain or by purchase in lieu thereof, and the taking would prevent or materially interfere with the use of the Premises for the purpose for which they are then being used, this Lease shall terminate and the Rent shall be abated for the remaining portion of the Term, effective on the earlier of (i) the date physical possession

is taken by the condemning authority or (ii) the date on which it is impracticable for LESSEE to conduct its business on the Premises.

17. PROPERTY AND LIABILITY INSURANCE. LESSEE agrees as follows:

- LESSEE shall maintain a policy or policies of Renter's Insurance insuring LESSEE'S interest in the LESSEE'S personal property against all risk of direct physical loss in an amount equal to the full replacement cost of the property as of the date of the loss. LESSEE shall maintain insurance pertinent to the operation of a bar and grill as well as all other businesses named in the Lease, and all plate glass on the Premises, LESSEE shall provide documentation to LESSOR.
- LESSOR may maintain insurance covering personal property owned by LESSOR, its customers and visitors, providing protection against fire with extended coverage, sprinkler damage, vandalism and malicious mischief coverage.
- LESSOR and LESSEE shall provide the other party with certificates of insurance evidencing coverage as described above upon each annual renewal of agreed upon term. LESSOR and LESSEE will name each other as additional insured.

18. QUIET ENJOYMENT. LESSOR warrants that it has full right to execute and perform this Lease, and grant the leasehold estate, and that LESSEE, upon timely payment of the rent and performing the terms, conditions, covenants and agreements contained in this Lease, shall peaceably and quietly have, hold and enjoy the Premises during the term of the Lease. However, LESSOR or LESSEE shall not be responsible for the acts or omissions of LESSEE or LESSOR or any third parties that may interfere with LESSEE'S or LESSOR'S use and enjoyment of the Premises and LESSEE or LESSOR shall indemnify and hold LESSOR or LESSEE harmless from and against and claims made against LESSOR or LESSEE for the acts of LESSEE or LESSOR or any third parties.

19. LESSOR'S RIGHT OF ENTRY. LESSOR shall have a reasonable right of entry into the offices of said LESSEE, with specific caution and care toward continuing the confidential and/or sensitive client, customer, and business material stored or otherwise kept on the Premises, for inspection, cleaning, making repairs, alterations or additions as LESSOR and LESSEE may deem necessary or desirable; to ascertain LESSEE'S use of Premises or to determine if any act of default under this Lease has occurred. Such entry shall be made only with 24 hours prior notice to LESSEE except where emergency or exigent circumstances exist. In the case of emergency or exigent circumstances, LESSOR shall have the immediate right of entry without prior notice to LESSEE. LESSEE will provide a copy of each key required to enter the leased premises, and or any subsequent copy if locks are for any reason changed.

20. SUBLEASE. LESSEE shall have the right to sublease with 60 day prior written approval from the LESSOR. In the event of any subletting, LESSEE shall nevertheless at all times remain fully responsible and liable for the payment of rent and for compliance with all of the other obligations under this Lease. Any executed Sublease must include assignment clause to assign Sublease to LESSOR.

21. TRADE EQUIPMENT. LESSOR and LESSEE acknowledges that any trade fixtures or equipment installed in a permanent fashion to walls, floors, ceiling, or any part of the leased space will remain with the building, unless full consent and any required repair are agreeable to LESSOR upon LESSEE vacating the Premises. It is also noted that any leased equipment by LESSEE is not the responsibility of LESSOR.

22. DEFAULT BY LESSEE. The following actions shall constitute default by LESSEE under this Lease:

- LESSEE shall fail to pay within 15 days due any installment of Rent, Additional Rent or any other payment required pursuant to this Lease.

- LESSEE shall fail to comply with any term, provision or covenant of this Lease (other than the timely payment of all payments due as per sub-paragraph above) and the failure is not cured within 15 days after notice to LESSEE.
- LESSEE shall be responsible for paying and clearing all liens against the Premises for work performed.

23. **REMEDIES FOR LESSEE'S DEFAULT.** Upon the occurrence of any event of default set forth in this Lease, LESSOR shall have the option, in its sole discretion, to pursue any one or more of the following remedies without any notice or demand to LESSEE pursuant to Wyoming state eviction laws:

- Terminate this Lease, in which event LESSEE shall surrender the Premises to LESSOR and, if LESSEE fails to surrender the Premises, LESSOR may, without prejudice to any other remedy which it may have for possession or arrearages in rent, enter upon and take possession of the Premises by force, if necessary, and remove LESSEE and, except as otherwise provided in this Lease, any other person who may be occupying all or any part of the Premises. LESSEE agrees to pay upon demand the amount of all loss and damage, which LESSOR may suffer limited to the intended use of the Premises in this Lease.
- Enter upon and take possession of the Premises as described above, without liability for any claim for damages, re-rent the Premises on behalf of LESSEE and receive directly the rent by reason of the re-renting. LESSEE agrees to pay LESSOR on demand any deficiency that may arise by reason of any re-renting of the Premises.
- Enter upon the Premises as described above, and do whatever LESSEE is obligated to do under the terms of this Lease. LESSEE agrees to reimburse LESSOR on demand for any expenses that LESSOR may incur in effecting compliance with LESSEE'S obligations under this Lease. Further, LESSEE agrees that LESSOR shall not be liable for any damages resulting to LESSEE from effecting compliance with LESSEE'S obligations under this Subsection caused by the negligence of LESSOR or otherwise.
- Take assignment of all Lease payments and deposits from LESSEE'S subleases or assignees to guarantee payment of the terms of this Lease.

24. **WAIVER OF DEFAULT OR REMEDY.** Failure of LESSOR to declare an event of default immediately upon its occurrence, or delay in taking any action in connection with an event of default, shall not constitute a waiver of the default, but LESSOR shall have the right to declare the default at any time and take such action as is lawful or authorized under this Lease. Pursuit of any one or more of the remedies set forth in Paragraph 23 shall not preclude pursuit of any one or more of the other remedies provided elsewhere in this Lease or provided by law, nor shall pursuit of any remedy provided constitute forfeiture or waiver of the rent or damage occurring to LESSOR by reason of the violation of any of the terms, provisions or covenants of this Lease. Failure by LESSOR to enforce one or more of the remedies provided upon an event of default shall not be deemed or construed to constitute a waiver of the default or any other violation or breach of any of the terms, provisions and covenants in this Lease.

25. **ACTS OF GOD.** LESSOR shall not be required to perform any covenant or agreement in this Lease or be liable in damages to LESSEE, so long as the performance or non-performance of the covenant or obligation is caused by or prevented by an act of God or force majeure.

26. **ATTORNEYS' FEES.** In the event that any party is required to enforce any of the terms and conditions of this Lease as a result of default or breach, the prevailing party in any such enforcement proceeding or action shall be entitled to an award of all reasonable attorneys' fees and other expenses incurred in enforcing this Lease with or without suit.

27. **HOLDING OVER.** In the event of holding over by LESSEE after the expiration or termination of the Lease, the hold over shall be as a tenant-at-will and all of the terms and provisions of this Lease shall be applicable during that period, except that LESSEE shall pay LESSOR, as rental for the period of such hold over, an amount equal to one and one-half times the rent which would have been payable by LESSEE had the hold over period been a part of the Lease term. LESSEE agrees to immediately vacate and deliver the Premises to LESSOR upon LESSEE'S receipt of notice from LESSOR to vacate. The rent payable during the hold over period shall be payable to LESSOR on demand. No holding over by LESSEE, whether with or without consent of LESSOR, shall operate to extend the term of the Lease.
28. **SUCCESSORS.** This Lease shall be binding upon and inure to the benefit of LESSOR and LESSEE, and their respective heirs, executors, administrators, personal representatives, successors and assigns.
29. **ASSIGNABILITY.** LESSEE may not assign, directly or indirectly, all or part of its rights or obligations under this Agreement without the prior written consent of LESSOR.
30. **HOLD HARMLESS AND NON-LIABILITY.** LESSEE shall indemnify and hold harmless LESSOR, its agents and any and all affiliates of LESSOR, from and against any and all claims arising from injury to persons, loss of life or damage to property occurring in or about the Premises and from and against any and all cost, expenses, and liabilities (including without limitation, reasonable attorneys' fees) incurred by the LESSOR or said affiliates in or in connection with any claim or proceeding based thereon, to the extent such injury, loss of life or damage arises out of the negligence or willful act or failure to act of (a) LESSEE, or any of its officers, employees, agents, contractors, or licenses or (b) any visitors, guests, or invitees of LESSEE while on the Premises.
31. **MISCELLANEOUS.** The captions appearing in this Lease are inserted only as a matter of convenience and in no way define, limit, construe or describe the scope or intent of such section. If any provisions of this Lease shall be held to be invalid or unenforceable, such invalidity or unenforceability shall not affect any other provision of this Lease, and such other provisions shall continue in full force and effect.
32. **NOTICE.**
- Rent and other payments required to be made by LESSEE shall be payable to LESSOR from time to time into an account designated in writing by LESSOR, as amended from time to time.
 - Any notice or document required or permitted to be delivered by this Lease shall be deemed to be delivered (whether or not actually received) when deposited in the United States mail, postage prepaid, certified mail, return receipt requested, electronically sent, or hand delivered, addressed to the parties at the respective addresses set below.

LESSOR:

3/J Ranch Enterprises, LLC, c/o
RE/MAX Capitol Properties
4000 Central Avenue, Suite 1
Cheyenne, WY 82001

LESSEE:

The Suite LLC
115 West 15th St.
Cheyenne, WY 82001

33. **ENTIRE AGREEMENT AND LIMITATION OF WARRANTIES.** It is expressly agreed by LESSEE, as a material consideration for the execution of this Lease, that this Lease and associated documents are the entire agreement of the parties; that there are and were no verbal representations, warranties, understandings, stipulations, agreements or promises pertaining to this Lease not incorporated in writing in the Lease. LESSOR and LESSEE expressly agree that there are and shall be no implied warranties of

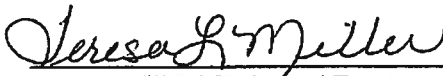
merchantability, habitability, fitness for a particular purpose or any other kind arising out of this Lease and there are no warranties which extend beyond those expressly set forth in this Lease. It is also agreed that this Lease may not be altered, waived, amended or extended except by an instrument in writing signed by both LESSOR and LESSEE.

Signed effective December 20, 2012.

LESSOR:

3/J Ranch Enterprises, LLC & Teresa L. Miller, Trustee
of the Teresa L. Miller Revocable Trust Dated
September 14, 2007

BY:


Teresa L. Miller, Member and Trustee

DATE:

12-20-2012

LESSEE:

The Suite LLC

BY:


Shad Griffith, Owner Shadow Corp.

DATE:

12-20-2012